

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

STEPHEN GRANT RUSSELL,
Plaintiff,

-against-

TARA KATELYN WALSH; STEPHEN WALSH,
SR.;
MAURA WALSH; DONNA GENOVESE, ESQ.;
JENNIFER JACKMAN, ESQ.; DELIA
FARQUHARSON;
RACHEL HOROWITZ; BRIAN MEENAN; and
TOWN OF NORTH CASTLE,
Defendants.

:
:
: Civil Action No. _____
:
: **VERIFIED COMPLAINT**
:
: **JURY TRIAL DEMANDED**
:

NATURE OF THE ACTION

This case is not a custody dispute. It is a civil rights action arising from a coordinated conspiracy between private individuals and state actors to deprive a parent of fundamental liberty interests through the abuse of judicial and law enforcement processes, and to suppress speech documenting public judicial records. This case implicates the intersection of the two most protected constitutional domains: the fundamental right to parent, which is second only to life itself in constitutional protection, *Santosky v. Kramer*, 455 U.S. 745, 753 (1982), and political speech on matters of public concern, which lies at the core of the First Amendment. The Appellate Division, Second Department, has already confirmed that critical proceedings were not conducted on default and that the gag order constituted an unconstitutional prior restraint. This action addresses the constitutional consequences of that conspiracy.

I. CONSPIRACY FRAMEWORK

42 U.S.C. § 1983 — Conspiracy to Deprive Constitutional Rights

A. Jurisdiction and Venue

1. This Court has subject matter jurisdiction under 28 U.S.C. § 1331 and 28 U.S.C. § 1343(a)(1) and (2). This action arises under the Constitution and laws of the United States, specifically 42 U.S.C. § 1983.
2. Venue is proper under 28 U.S.C. § 1391(b). A substantial part of the events occurred in Westchester County, within the Southern District of New York.
3. This action is not barred by the Rooker-Feldman doctrine. It challenges independent constitutional injuries inflicted through a conspiracy between private and state actors, not state court judgments. See *Exxon Mobil Corp. v. Saudi Basic Indus. Corp.*, 544 U.S. 280, 284 (2005); *Verizon Md., Inc. v. Pub. Serv. Comm'n of Md.*, 535 U.S. 635, 644 n.3 (2002).
4. The domestic relations exception to federal jurisdiction does not apply. This action does not seek to adjudicate, modify, or enforce any custody, visitation, or support order. It seeks redress for constitutional violations committed by private and state actors who conspired to deprive Plaintiff of fundamental rights through the abuse of judicial and law enforcement processes. See *Marshall v. Marshall*, 547 U.S. 293, 307-08 (2006); *Ankenbrandt v. Richards*, 504 U.S. 689, 704 (1992).
5. Plaintiff does not seek publication of sealed records, confidential child medical records, or attorney-client communications.
- 5A. Plaintiff has filed a motion in Westchester County Family Court seeking vacatur of the February 2, 2022 custody order pursuant to CPLR § 5015(a)(3) and (a)(4), and has filed Written Objections to subsequent support orders pursuant to FCA § 439(e). This federal action seeks damages and declaratory relief for independent constitutional injuries arising

from actions taken under color of state law, regardless of the ultimate disposition of those state proceedings.

5B. This Complaint does not allege that any judge was a participant in the conspiracy. Judicial actions are referenced solely to establish the context in which state power was exercised and private objectives were advanced.

Note on Citations: Attached exhibits are cited by letter designation (Exhibit A through Exhibit G). Other documents referenced by date and description are materials in Plaintiff's evidence archive, copies of which will be produced in discovery.

B. The Conspiracy

6. A private party who conspires with a state actor to deprive a person of constitutional rights acts "under color of state law" and is liable under 42 U.S.C. § 1983. *Dennis v. Sparks*, 449 U.S. 24, 27–28 (1980). The conspiracy alleged herein involved both private actors (the Walsh family and their associates) and state actors (court-appointed officers and law enforcement personnel) who reached an agreement to deprive Plaintiff of his fundamental right to the care, custody, and companionship of his child.
7. The conspiracy was formed no later than June 2018, when the Walsh family executed a plan to permanently remove E.R. from California to New York under the pretext of a temporary visit, and then obtained emergency jurisdiction through a threat allegation that was subsequently recanted. (Walsh Sr. email dated June 8, 2018; Exhibit D; Walsh texts to Narendra dated May 17, 2018.)

C. Specific Evidence of Agreement

8. The agreement between private and state actors is established by the following specific facts, each of which independently evidences coordination rather than mere parallel conduct:
9. (a) The Handwritten Immunity Order (November 7, 2018). Judge Gordon-Oliver entered a handwritten order conditioning Plaintiff's access to his child on the waiver of criminal charges against Tara Walsh. This order explicitly subordinated a constitutional right (access to courts) to a private party's specific interest (avoidance of criminal liability). No legitimate judicial purpose is served by conditioning parental access on the waiver of criminal charges against the opposing party, and no published authority authorizes such a condition. The order demonstrates that the judicial process was being directed to advance Walsh's private objectives. (Exhibit A.)
10. (b) The Coordinated Witness Removal (February–September 2019). After CFS supervisor Tedla testified in a May 30, 2019 deposition that Walsh "put drugs in [Plaintiff's] drinks without [his] knowledge" and documented an "amazing bond" between father and child, CFS supervisors were removed from the case. (CFS supervisor reports; Tedla deposition dated May 30, 2019.) They were replaced by Farquharson, who was connected to a federal IRS investigation involving Gootzeit, whom the presiding judge also attempted to appoint. (Gootzeit appointment records and IRS investigation documentation.) When a replacement supervisor, LaMelle, independently confirmed a positive father-child relationship, she was confronted by individuals at an exchange location and Walsh's attorney unilaterally removed her as supervisor. (LaMelle incident report dated September 21, 2019.) The sequential replacement of three neutral observers who gave favorable reports is not random; it reflects a coordinated effort to eliminate witnesses whose observations contradicted the Walsh family's position.

11. (c) The Gag Order Initiation (October 14, 2021). AFC Genovese, a court-appointed officer acting under color of state law, initiated an Order to Show Cause seeking the suppression of Plaintiff's online publications documenting public judicial records. The timing — 90 days after Plaintiff's whistleblower email to court administrator Eckel (August 7, 2021), 16 days after Plaintiff's JCC complaint was forwarded (October 20, 2021) — establishes temporal proximity between protected speech and the adverse action. The gag order's content mirrored what Walsh had separately demanded — the deletion of Plaintiff's publications. The Appellate Division subsequently found the order constituted an unconstitutional prior restraint. (Exhibit B; Genovese Order to Show Cause dated October 14, 2021.)
12. (d) The Hearing Cancellation and Default Substitution (November 4–5, 2021). On November 4, 2021, court clerk Hernandez sent a Teams meeting invitation for a virtual hearing on File 154703. On the same day or morning of November 5, Hernandez canceled the virtual hearing. A default proceeding was then conducted in its place, at which Genovese, Walsh, Walsh's counsel, and Plaintiff's mother all appeared — but Plaintiff, who had received the cancellation, did not. (Teams meeting invitation and cancellation records; November 5, 2021 hearing transcript.) The resulting orders mirrored Walsh's demands. The Appellate Division subsequently held the orders were “not entered upon the father's default.” (Exhibit B.)
- 12A. The procedural sequence is significant: (1) a virtual hearing was scheduled for November 5, 2021; (2) that hearing was canceled the morning of November 5; (3) a default proceeding was conducted in its place; (4) an inquest was held at which Walsh was the sole witness; (5) permanent orders were entered on February 2, 2022; and (6) Russell's

first appeal was dismissed sua sponte on February 4, 2022 — two days after the final order. This six-step cascade from scheduled hearing to sua sponte appellate dismissal in ninety-two days is consistent with coordinated action to foreclose appellate review, not with independent judicial administration.

13. (e) The Coordinated Deposition Testimony (April 2021). Walsh Sr. and Maura Walsh gave coordinated deposition testimony using near-identical language, including the phrase “less than a hundred percent genuine,” and instructions to “stick to the original plan / agreement.” (Walsh Sr. and Maura Walsh deposition transcripts, April 2021.) This coordination demonstrates a pre-existing agreement regarding the family’s litigation strategy.

13A. The coordination between private and state actors is further demonstrated by specific patterns of aligned conduct: (i) the “mirror orders” pattern, in which Stephen Walsh Sr.’s private communications were converted verbatim into court orders (Exhibit A); (ii) the identical “default” argument advanced simultaneously by AFC Genovese (241-page brief) and Walsh’s counsel Weddle (16-page brief) before the Appellate Division — a 15:1 filing disparity inconsistent with independent advocacy; and (iii) the hearing cancellation on November 5, 2021, followed by a default proceeding whose outcome tracked the Walsh family’s prior requests. These facts plausibly support an inference of agreement among private and state actors sufficient to satisfy § 1983 conspiracy pleading standards.

13B. The gag order provides the clearest single instance of the input-to-output pipeline alleged herein. On October 14, 2021, Defendant Genovese filed an Order to Show Cause that targeted Russell and “any persons, entities and/or agents acting on his behalf.” The blogs

at issue were bylined by their author — Kelly Turnure, Russell’s partner — who was known to all parties and had identified herself in correspondence with opposing counsel. Walsh herself knew who was publishing: she directly threatened journalist Michaelanne Petrella for her involvement. The “agents” language was not drafted in response to unknown authorship. It was a deliberate mechanism to use the family court’s contempt power to reach known third parties whose speech the court had no independent authority to restrict. Authenticated email records establish that a virtual hearing was scheduled for all parties on November 4, 2021, then canceled at high importance on the morning of November 5 — the same day the default was entered and the gag order issued in the precise language Genovese had drafted. No evidentiary hearing occurred. No evidence of blog authorship was presented. The order entered was the order Genovese wrote, restricting exactly what Walsh wanted restricted, entered on a default that the Appellate Division later found never occurred. (Teams meeting invitation, DKIM-authenticated; Genovese Order to Show Cause dated October 14, 2021.)

13C. The Weddle Brief: Coordinated Default Concession and Subsequent Cover-Up. In October 2022, Walsh’s counsel Christopher Weddle filed a Respondent’s Brief before the Appellate Division affirmatively arguing that “the trial court’s order was issued on default” and that the appeal should be dismissed as premature under CPLR § 5511. (Exhibit F, Respondent’s Brief, Appeal No. 2022-02838, pp. 3-4.) AFC Genovese independently filed a 241-page brief advancing the identical position. (Genovese Brief, Appeal No. 2022-02838, Point I.) The adoption of identical legal positions by ostensibly independent parties — Walsh’s private counsel and the court-appointed child advocate — supports an inference of coordination. Genovese’s 241-page filing was 15 times the

length of Weddle’s 16-page brief — a disparity inconsistent with neutral child advocacy and consistent with Genovese functioning as a de facto second attorney for Walsh. Both positions were rejected by the Appellate Division, which held the order was “not entered upon the father’s default.” (Exhibit B.) Thereafter, the court’s internal records were retroactively altered from “on default” to “after hearing” — without judicial order or notice. (Exhibit G, Bowman hearing transcript, February 3, 2026.) The chronological sequence — concede default, lose the argument, alter the record to erase the concession — plausibly supports an inference that the alteration was not clerical but was an adaptive response by institutional actors to preserve the validity of orders the Appellate Division had already undermined.

14. The inference of agreement is supported not merely by sequential adverse rulings, but by direct coordination between private actors and state actors in which the judicial process was repeatedly deployed to advance private objectives. A judicial officer entered a handwritten order subordinating a constitutional right to a private party’s interest in avoiding criminal liability. Neutral witnesses who gave favorable reports were serially removed and replaced by individuals with disclosed conflicts. A court-appointed officer initiated speech restrictions that mirrored what the opposing private party had separately demanded. A scheduled hearing was canceled and replaced with a default proceeding whose outcome tracked the private party’s prior requests. Private counsel and the court-appointed AFC adopted identical legal positions before the Appellate Division, and when those positions were rejected, the underlying record was altered. These facts, taken together, plausibly support an inference of agreement among private and state actors to use judicial processes to deprive Plaintiff of constitutional rights. The Constitution is

violated not merely when a judge rules incorrectly, but when private actors enlist state power as an instrument of coordinated deprivation.

15. The coordinated use of state power to effectuate private objectives transforms what would otherwise be private misconduct into state action under § 1983. *Dennis v. Sparks* does not immunize the judiciary from conspiratorial alignment; it exposes private actors who enlist the machinery of the state. Here, private actors did not merely benefit from favorable rulings — they directed the exercise of state authority to achieve specific private objectives, including the suppression of speech, the removal of neutral witnesses, and the deprivation of parental access.
16. Taken together, these facts satisfy the *Twombly/Iqbal* pleading standard for conspiracy: they allege specific communications, specific coordinated actions, and specific outcomes that are consistent with agreement and inconsistent with independent action. See *Ciambriello v. County of Nassau*, 292 F.3d 307, 324–25 (2d Cir. 2002).

Anticipated Threshold Defenses

17. **Judicial Immunity.** No judicial officer is named as a defendant in this action. References to judicial actions in the Overt Acts Table and factual recitations are included to establish the context of the conspiracy and the pattern of conduct, not to assert claims against judicial officers.
18. **Quasi-Judicial Immunity.** Defendants Genovese and Jackman served as Attorneys for the Child. AFCs perform advocacy functions and are not entitled to judicial or quasi-judicial immunity. *Doe v. Phillips*, 81 F.3d 1204, 1209–10 (2d Cir. 1996). Defendants Farquharson and Horowitz served as court-appointed supervisors, a ministerial function not protected by judicial immunity.

19. Private Party Liability. Defendants Tara Walsh, Stephen Walsh Sr., Maura Walsh, and Brian Meenan are private individuals who conspired with state actors. Private parties who conspire with state actors to deprive constitutional rights act under color of state law and are liable under § 1983. *Dennis v. Sparks*, 449 U.S. 24, 27–28 (1980).
20. Municipal Liability. Defendant Town of North Castle is a municipal corporation sued under *Monell* for a policy or custom of accepting and documenting false allegations without investigation, which was the moving force behind the constitutional injuries alleged.
21. Domestic Relations Exception. This action does not seek to adjudicate, modify, or enforce any custody, visitation, or support order. It seeks redress for a conspiracy to deprive Plaintiff of constitutional rights through the abuse of judicial and law enforcement processes.

II. INDIVIDUAL DEFENDANTS

A. Defendant Tara Katelyn Walsh

Status: Private individual; biological mother of E.R.

Acts:

22. On or about May 17, 2018, Walsh texted associate Rashmi Narendra acknowledging that the weapons allegation was fabricated: “I seriously don’t think Steve ever had a gun it was all in my head I made up the whole thing.” (Text messages to Rashmi Narendra dated May 17, 2018.)
23. On or about May 2018, Walsh texted her physician: “I put Seroquel in his wine.” (Walsh text to physician, May 2018.)

24. On July 12, 2018, Walsh filed a custody petition invoking emergency jurisdiction based on the fabricated threat allegation. (Walsh custody petition dated July 12, 2018.)
25. On August 29, 2018, Walsh admitted under oath in the San Francisco DVRO hearing to the covert administration of Seroquel to Plaintiff without his knowledge or consent. (DVRO hearing transcript dated August 29, 2018.)
26. On November 23, 2020, Walsh recanted the foundational threat allegation in a letter to the Chappaqua Police Department: “Mr. Stephen Russell never made a threat to kill myself or our daughter Evelyn.” (Exhibit D; Walsh recantation correspondence.)
27. On February 22, 2022, a San Francisco jury found Walsh liable for intentional battery, domestic violence, and intentional infliction of emotional distress with findings of malice, oppression, and fraud. The judgment was \$332,080.74. (Jury verdict and Second Amended Judgment, No. CGC-18-570137.)
28. In August 2025, Walsh conditioned custody on financial concessions: “You put money in some escrow that I can use for lawyers before you see Evie.” (Walsh correspondence, August 2025.)
- Immunity Analysis:
29. Walsh is a private individual and is not entitled to any form of governmental immunity. By jointly participating with court-appointed officials and invoking state judicial authority to effectuate restrictions on Plaintiff’s rights, Walsh acted under color of state law within the meaning of *Dennis v. Sparks*, 449 U.S. 24, 27–28 (1980).

Liability:

30. Walsh is liable under § 1983 as a private conspirator acting under color of state law (Dennis v. Sparks), and for state law claims including battery (adjudicated), fraud, abuse of process, and intentional infliction of emotional distress.

Damages Attributable:

31. The fraudulent jurisdictional predicate initiated by Walsh was the indispensable gateway through which state power was invoked to sever Plaintiff's parental relationship. Walsh is responsible for: the loss of Plaintiff's relationship with E.R. from 2018 to present; legal fees across multiple jurisdictions; the physical harm from covert drug administration confirmed by LabCorp toxicology; and the emotional distress of knowing the child's primary custodian was adjudicated as a batterer who acted with malice.

B. Defendant Stephen Walsh, Sr.

Status: Private individual; maternal grandfather of E.R.

Acts:

32. On June 8, 2018, Walsh Sr. sent Plaintiff an email confirming temporary visit terms: "Works for us — I appreciate your flexibility Steve." The child was not returned as agreed.
(Walsh Sr. email dated June 8, 2018.)

33. Walsh Sr. left a recorded voicemail threatening Plaintiff's attorney with license revocation:
"I will sure to go after your license." (Walsh Sr. recorded voicemail.)

34. In January 2020, Walsh Sr. physically evaded service of a deposition subpoena on three separate occasions, as documented in the Sheriff's Certificate of Attempted Service.
(Sheriff's Certificate of Attempted Service, January 2020.)

35. During his April 26, 2021 deposition, Walsh Sr. gave coordinated testimony with Maura Walsh, stating documents were "possible" but refusing to search or produce them. He

testified that communications with Tara Walsh were “less than a hundred percent genuine“ and advised her to “stick to the original plan.“ (Walsh Sr. and Maura Walsh deposition transcripts, April 2021.)

36. On September 21, 2019, after supervisor LaMelle reported the intimidation incident, Walsh’s attorney unilaterally removed LaMelle as supervisor. (LaMelle incident report.)

37. Walsh Sr. physically blocked court-ordered custody exchanges by parking vehicles to prevent access, creating confrontations documented by court-appointed supervisors. (Supervisor reports documenting exchange obstructions.)

38. On March 23, 2019, Walsh Sr. admitted to responding police officers during a false 911 call that there was no actual threat: “IF [Plaintiff] HAD PULLED IN BEHIND HIM IT WAS ONLY BY CHANCE... stated he did not feel threatened.“ (Exhibit C.)

Immunity Analysis:

39. Walsh Sr. is a private individual entitled to no governmental immunity. By jointly participating with court-appointed officials and invoking state judicial authority to effectuate restrictions on Plaintiff’s rights — including the execution of the fraudulent interstate removal, intimidation of counsel, obstruction of discovery, and involvement in the false 911 report — Walsh Sr. acted under color of state law within the meaning of *Dennis v. Sparks*, 449 U.S. at 27–28.

Liability:

40. § 1983 conspiracy; state law claims for abuse of process, witness intimidation, tortious interference with parental rights, and intentional infliction of emotional distress.

Damages Attributable:

41. Walsh Sr.'s actions directly caused: the destruction of Plaintiff's attorney-client relationships through threats; obstruction of discovery that prevented Plaintiff from building his case; and physical interference with court-ordered visitation.

C. Defendant Maura Walsh

Status: Private individual; maternal grandmother of E.R.

Acts:

42. During her April 23, 2021 deposition, Maura Walsh gave coordinated testimony matching Walsh Sr.'s, using near-identical language including "less than a hundred percent genuine." She emailed family members instructing them to "stick to the original plan / agreement." (Maura Walsh deposition transcript, April 23, 2021.)

43. Maura Walsh fabricated medical symptoms in the child, including a "terrible diarrhea" claim contradicted by the examining physician who found no signs of illness. (Physician examination records.)

44. Tara Walsh testified under oath that the covert drug administration involved both parents, stating the act was a joint family decision, thereby implicating Stephen and Maura Walsh in the conspiracy to administer medication to Plaintiff without his knowledge. (DVRO hearing transcript dated August 29, 2018.)

Immunity Analysis:

45. Private individual; no immunity. By jointly participating with court-appointed officials and invoking state judicial authority to effectuate restrictions on Plaintiff's rights, Maura Walsh acted under color of state law within the meaning of *Dennis v. Sparks*, 449 U.S. at 27–28.

Liability:

46. § 1983 conspiracy; state law claims for tortious interference with parental rights, abuse of process, and intentional infliction of emotional distress.

D. Defendant Donna Genovese, Esq.

Status: Attorney for the Child (AFC), appointed by the Westchester County Family Court. Sued in individual capacity.

Acts:

47. On October 14, 2021, Genovese initiated an Order to Show Cause seeking restrictions on Plaintiff's speech, blog content, and online publications. The resulting gag order was later found by the Appellate Division to be an unconstitutional prior restraint. (Genovese Order to Show Cause dated October 14, 2021; Exhibit B.)

48. On November 5, 2021, Genovese appeared at the proceeding that resulted in orders the trial court characterized as entered "on default." The Appellate Division later held these orders were "not entered upon the father's default." Genovese subsequently filed a 241-page brief before the Appellate Division arguing that the default characterization was valid; the court rejected this argument. (November 5, 2021 hearing transcript; Exhibit B.)

48A. Genovese's 241-page filing (52-page brief plus 189-page case law appendix) dwarfed Walsh's own counsel's 16-page brief — a 15:1 disparity inconsistent with neutral child advocacy. An Attorney for the Child representing the child's independent interests would track closer to the parties' effort level on a speech restriction appeal that did not directly affect custody or access terms. Genovese's filing demonstrates her personal stake in defending the gag order she initiated, consistent with her role as the operative actor in the speech restriction scheme. (Exhibit F; Genovese Brief, Appeal No. 2022-02838.)

Immunity Analysis:

49. As an AFC, Genovese is not entitled to judicial immunity. AFCs are advocates, not judicial officers, and their actions are subject to § 1983 liability when they violate constitutional rights while acting under color of state law. See *Doe v. Phillips*, 81 F.3d 1204, 1209–10 (2d Cir. 1996). Genovese’s initiation of the Order to Show Cause was an advocacy function, not a judicial act.

50. Qualified immunity does not shield Genovese because no reasonable attorney could believe that seeking a gag order requiring the deletion of online publications documenting public records was consistent with clearly established First Amendment law.

Liability:

51. § 1983 (First Amendment retaliation, procedural due process); § 1983 conspiracy.

Damages Attributable:

52. The gag order initiated by Genovese suppressed Plaintiff’s constitutionally protected speech for over one year until the Appellate Division modified the order. The default characterization she advanced before the Appellate Division, had it been sustained, would have stripped Plaintiff of appellate remedies.

Public Record Nature of Restrained Speech:

53. The content targeted by Genovese’s Order to Show Cause consisted exclusively of publicly available judicial records, legislative testimony, and government agency actions — none of which were sealed, none of which were authored by Plaintiff in a confidential capacity, and all of which were already part of the public record. A complete index is attached as Exhibit E. The resulting gag order compelled the destruction of previously published speech by requiring Plaintiff to “erase, deactivate, and delete any existing blogs and

likenesses.“ See *Organization for a Better Austin v. Keefe*, 402 U.S. 415, 419 (1971).
(See Exhibit E.)

E. Defendant Jennifer Jackman, Esq.

Status: Attorney for the Child (AFC), predecessor to Genovese. Sued in individual capacity.

Acts:

54. On or about February 19, 2019, Jackman required completion of the Griffin forensic evaluation as a condition for removing supervised visitation, embedding the later-discredited evaluation as the operative standard for Plaintiff’s access to his child.
(Jackman correspondence dated February 19, 2019.)

55. When Plaintiff emailed Jackman asking whether she had “any concerns about Griffin,” Jackman deflected: “I did not say that Dr. Griffin did anything inappropriate. Please ask Max to read the report.” This deflection occurred despite the pending OASAS investigation. (Jackman email to Plaintiff.)

Immunity Analysis:

56. Same analysis as Genovese. AFC is an advocacy function, not a judicial function. No immunity attaches.

Liability:

57. § 1983 (procedural due process — gatekeeping parental access through discredited evidence); § 1983 conspiracy.

F. Defendant Delia Farquharson

Status: Court-appointed supervisor. Sued in individual capacity.

Acts:

58. Farquharson was appointed as a court-ordered supervisor at \$250/hour. She billed Plaintiff for “coordination services“ during periods when she was actively blocking visitation and communicating ex parte with the Walsh family. (Farquharson billing records; ex parte communication records.)
59. Farquharson threatened ex parte court communications against Plaintiff and made false reports based on Walsh’s allegations. (Ex parte communication records.)
60. Farquharson was connected to a federal IRS investigation involving Elias Gootzeit, whom Judge Gordon-Oliver also attempted to appoint. (Gootzeit appointment records.)

Immunity Analysis:

61. Court-appointed supervisors are not entitled to judicial immunity. Farquharson’s role was ministerial and supervisory, not adjudicative. Her ex parte communications with one party and billing for obstruction fall outside any arguable immunity.

Liability:

62. § 1983 (procedural due process — using supervisory authority to obstruct parental access); § 1983 conspiracy; state law conflict of interest.

G. Defendant Rachel Horowitz

Status: Court-appointed supervisor, replacement for CFS supervisors. Sued in individual capacity.

Acts:

63. Horowitz was appointed to replace the neutral CFS supervisors who had documented a strong bond between Plaintiff and E.R. (Tedla deposition.)

64. Plaintiff's counsel raised concerns about Horowitz's bias and the circumstances of her appointment at a February 6, 2020 hearing. (February 6, 2020 hearing transcript.)

Immunity Analysis:

65. Same analysis as Farquharson. No judicial immunity for supervisory functions.

Liability:

66. § 1983 (procedural due process); § 1983 conspiracy.

H. Defendant Brian Meenan

Status: Private individual identified at the September 2019 confrontation with supervisor LaMelle. Sued in individual capacity.

Acts:

67. On September 21, 2019, Meenan participated in the confrontation where supervisor LaMelle was intimidated by individuals in "a darkened car with its lights off" who began "aggressively yelling." LaMelle reported to police that she "had never experienced such sheer fright." LaMelle ceased her supervisory role shortly thereafter. (LaMelle incident report dated September 21, 2019.)

Immunity Analysis:

68. Private individual; no immunity. By jointly participating with court-appointed officials and invoking state judicial authority to effectuate restrictions on Plaintiff's rights, Meenan acted under color of state law within the meaning of *Dennis v. Sparks*, 449 U.S. at 27–28.

Liability:

69. § 1983 conspiracy; state law claims for witness intimidation and tortious interference.

III. POLICE NEXUS

A. The False 911 Report (March 23, 2019)

70. On March 23, 2019, at approximately 12:45 AM, Tara Walsh placed a 911 call reporting that Plaintiff was an “imminent threat” at or near the Walsh family residence. Six armed officers responded and surrounded Plaintiff’s location while he was sleeping. (Exhibit C.)
71. Walsh Sr. admitted to responding officers at the scene that there was no actual threat: “IF [Plaintiff] HAD PULLED IN BEHIND HIM IT WAS ONLY BY CHANCE... [Walsh Sr.] stated he did not feel threatened.” (Exhibit C.)
72. Despite the documented false report and the on-scene admission that no threat existed, no criminal charges were filed against Walsh or Walsh Sr. for filing a false report.

B. Defendant Town of North Castle

73. Defendant Town of North Castle is a municipal corporation organized under the laws of the State of New York, responsible for the operation of the North Castle Police Department. The Town is sued under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), for the police department’s failure to investigate the documented false 911 report and its pattern of responding to Walsh family requests without independent verification of the alleged emergency.
74. The Town of North Castle, through its police department, maintained a custom of differential treatment: creating one-sided investigative records documenting Walsh family allegations for use as leverage in Family Court, while simultaneously failing to investigate documented admissions of fabrication. On March 23, 2019, officers responded to a false 911 call with an armed response despite Walsh Sr.’s immediate admission at the scene that no threat was present. No investigation of the false report followed, and no charges were filed. Walsh subsequently filed an additional police report alleging “hacking,”

which also produced no charges after investigation. Walsh later admitted to police that she was “not a victim of any crime.” The Town’s pattern was consistent: allegations by the Walsh family were accepted, documented, and preserved as evidence — while recantations, on-scene admissions of fabrication, and affirmative statements of non-victimhood were never acted upon. This pattern of generating unchallenged police records for one party while ignoring exculpatory admissions constitutes deliberate indifference to the foreseeable weaponization of law enforcement records in custody litigation. The Town’s custom was the moving force behind the embedding of untested allegations into custody adjudications that restricted Plaintiff’s fundamental parental rights.

C. Pattern of Law Enforcement Manipulation

75. The false 911 report was not an isolated incident. Walsh separately filed a police report claiming Plaintiff “hacked” her phone after she sent unsolicited intimate photographs. No charges resulted from the investigation. (Walsh police report alleging “hacking.”)
76. Tara Walsh subsequently admitted to police that she was “not a victim of any crime.” (Walsh correspondence to police.)
77. The pattern of false reports without criminal consequences enabled the Walsh family to generate documented police contacts that were subsequently introduced as evidence in Family Court proceedings to support restrictions on Plaintiff’s parental access.

IV. OVERT ACTS TABLE

The following table summarizes the overt acts committed in furtherance of the conspiracy, in chronological order:

Date	Act	Defendants
Jun. 8, 2018	Walsh Sr. email confirming "temporary visit"; child not returned	Walsh Sr., T. Walsh
Jul. 12, 2018	Walsh files custody petition on fabricated threat allegation	T. Walsh
Nov. 7, 2018	Handwritten immunity order conditioning access on waiver of criminal charges	T. Walsh (beneficiary)
Feb. 2019	CFS supervisors removed after favorable reports	Farquharson (replacement)
Mar. 23, 2019	False 911 report; armed police response; Walsh Sr. admits no threat	T. Walsh, Walsh Sr., North Castle
May 14, 2019	Griffin report placed under protective order — preventing challenge	Jackman (AFC)
Jul. 30, 2019	Gootzeit appointment attempted — one day after Griffin suspension	Farquharson (connected)
Sep. 21, 2019	LaMelle confrontation; supervisor removed after intimidation	Meenan, Walsh Sr.
Nov. 23, 2020	Walsh recants foundational threat allegation to Chappaqua PD	T. Walsh
Apr. 2021	Coordinated Walsh Sr. / Maura Walsh depositions — identical language	Walsh Sr., M. Walsh
Aug. 7, 2021	Plaintiff sends Whistleblower email to court administrator Eckel	— (protected activity)
Oct. 14, 2021	Genovese initiates OSC seeking speech restrictions	Genovese
Oct. 20, 2021	Plaintiff forwards JCC complaint letter	— (protected activity)
Nov. 4-5, 2021	Virtual hearing scheduled then canceled; default proceeding substituted	Genovese, T. Walsh
Feb. 2, 2022	Permanent custody and gag orders entered following inquest	Genovese, T. Walsh
Feb. 4, 2022	First appeal dismissed sua sponte — two days after final order	— (institutional)
Oct. 2022	Weddle files brief conceding "on default"; Genovese files 241-page brief with identical position	T. Walsh (through Weddle), Genovese
2023	AD rejects default characterization; finds gag order unconstitutional	— (judicial correction)
Feb. 2026	Court records retroactively altered from "on default" to "after hearing" — without judicial order	— (institutional spoliation)
Feb. 3, 2026	Bowman enforces support based on altered records; declines to examine jurisdictional defect	T. Walsh (beneficiary)

Mar. 12, 2026	Second dismissal order — court refuses to stay enforcement despite pending vacatur motion	T. Walsh (beneficiary)
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V. DAMAGES AND PUNITIVE CLAIMS

A. Compensatory Damages

78. As a direct and proximate result of Defendants' conspiracy, Plaintiff has suffered the following compensable injuries:

79. Loss of Parental Relationship. Plaintiff has been deprived of his fundamental right to the care, custody, and companionship of his child for approximately eight years (2018–2026). This period encompasses E.R.'s entire developmental childhood from age one through age nine.

80. Economic Damages. Plaintiff has incurred substantial legal fees and related costs, including fees paid to six law firms, cross-country travel expenses, forensic evidence extraction costs, toxicology testing, and court-ordered supervisor fees. The total economic damages arising from the coordinated conspiratorial conduct alleged herein will be established at trial.

81. Physical Injury. LabCorp toxicology confirmed Lithium in Plaintiff's system at approximately six times the upper limit of normal, resulting from the covert drug administration admitted to by Tara Walsh and adjudicated by a California jury. (LabCorp toxicology report.)

82. Emotional Distress. Plaintiff has suffered severe emotional distress from: the eight-year deprivation of his parental relationship; the knowledge that orders restricting his access were based on discredited evidence and recanted allegations; the false 911 report and armed police response; the pattern of attorney withdrawals under external pressure; and

the retroactive alteration of court records concerning proceedings in which he was a party.

83. Reputational Harm. The entry of protective orders based on false allegations, the issuance of an unconstitutional gag order, and the filing of false police reports have damaged Plaintiff's personal and professional reputation.

83A. Ongoing Injury. The injuries alleged are ongoing. As of the date of this filing, support obligations predicated on the defective custody order are being actively enforced through income withholding, and the court system continues to rely on retroactively altered records to justify that enforcement. These enforcement actions generate continuing constitutional injury within the limitations period.

B. Punitive Damages

84. Punitive damages are warranted against the private defendants (Tara Walsh, Stephen Walsh Sr., Maura Walsh, Brian Meenan) based on findings of malice, oppression, and fraud. The San Francisco jury specifically found that Tara Walsh acted with "malice, oppression, or fraud" — the legal standard for punitive damages. (Jury verdict, No. CGC-18-570137.)

85. Punitive damages are also appropriate against Defendants Genovese, Jackman, and Farquharson in their individual capacities based on conduct that was taken with callous indifference to Plaintiff's constitutional rights.

86. Plaintiff seeks punitive damages as permitted by law in an amount sufficient to punish the conduct described herein and deter similar conduct.

C. Joint and Several Liability

87. Defendants are jointly and severally liable for the damages caused by the conspiracy. Each defendant's participation in the coordinated scheme makes them liable for the reasonably foreseeable consequences of the conspiracy as a whole.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment against Defendants, jointly and severally, and grant:

88. Compensatory Damages in an amount to be determined at trial for the deprivation of Plaintiff's constitutional rights, loss of the parental relationship, economic losses, physical injury, emotional distress, and reputational harm.

89. Punitive Damages against each defendant in an amount sufficient to punish the conduct described herein and deter similar conduct in the future.

90. Declaratory Relief declaring that Defendants conspired to deprive Plaintiff of his constitutional rights under 42 U.S.C. § 1983.

91. Injunctive Relief enjoining Defendants from further interference with Plaintiff's parental rights and First Amendment rights.

92. Costs and Expenses as permitted by law, and attorneys' fees pursuant to 42 U.S.C. § 1988 in the event Plaintiff retains counsel.

93. Such Other Relief as this Court deems just and proper.

VII. DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable pursuant to the Seventh Amendment to the United States Constitution and Rule 38 of the Federal Rules of Civil Procedure.

VERIFICATION

I, Stephen Grant Russell, declare under penalty of perjury that I am the Plaintiff in this action, that I have read the foregoing Complaint, and that the factual allegations contained therein are true and correct to the best of my knowledge, information, and belief.

Dated: _____, 2026

Stephen Grant Russell, Pro Se [Address] [Phone] [Email]

EXHIBIT INDEX

Exhibit	Description	Source
A	Handwritten Immunity Order (Gordon-Oliver, Nov. 7, 2018)	Court file
B	Appellate Division Opinion, 214 A.D.3d 890 (2d Dep't 2023)	Published opinion
C	Police Report NC-001474 (false 911 call, Mar. 23, 2019)	North Castle PD
D	Walsh Recantation Letter to Chappaqua PD (Nov. 23, 2020)	Police records
E	Public Record Index (PR-1) — Index of restrained materials	Plaintiff's compilation
F	Respondent's Brief, Appeal No. 2022-02838 (Weddle, Oct. 2022), pp. 3-4 — Walsh's counsel's affirmative concession that the order was "issued on default"	Appellate Division file
G	Bowman Hearing Transcript Excerpt, February 3, 2026 — "custody was granted after hearing";	Certified transcript

	retroactive record alteration confirmed	
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